



DECISION

Complaint No. : POS/4027/2025/71/KHS

Name and address of the complainant : Syed Intikhab Hussain (Rtd) Harbour Master, H. No. 48/A, Khayban-e-Bukhari, Phase-6, Karachi.

Name of the Agency Complained against : Karachi Fish Harbour Authority / Livestock & Fishries,

Name & Designation of Investigating Officer : Syed Maqsood Haider
Director, Regional Office (South) Karachi.

Vetted by : Rehana G. Ali Memon

Subject : Advisor-H

COMPLAINT REGARDING UNAUTHORIZED DEDUCTION OF RS. 6,110/- FROM PENSION FOR THE MONTH OF APRIL & MAY 2025 AND NON-RESPONSE TO REPRESENTATION.

THE COMPLAINT

Syed Ifikhar Hussain, a retired Harbour Master of the Karachi Fisheries Harbour Authority, filed a complaint on 02-06-2025, stating that he had been receiving a monthly pension of Rs.179,395/- up to March 2025. However, during the month of April and May 2025, an amount of Rs. 6,110/- was deducted from his pension without any intimation or justification, resulting in payment of a reduced pension of Rs.173,285/-. He further stated that he approached the concerned department through a written application seeking clarification regarding the aforesaid deduction, but no response was received. He solicited intervention of the Provincial Ombudsman Sindh in the matter.

PROCEEDINGS

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), as was receiving mandatory Affidavit on Form "A" and other relevant document, report was called from the Agency.

3. In response, the Managing Director, Karachi Fisheries Harbour Authority (KFHA), Government of Sindh, vide letter dated 28-07-2025, stated that the post of Harbour Master is a sanctioned post in BS-18 under the KFHA Rules and with an approved budget. The complainant had sought upgradation of the post to BS-19; however, only a recommendation for grant of Selection Grade was initiated, which never received approval from the competent authority. The complainant retired from KFHA service on 22-01-2023.

4. It was further clarified that the Government of Sindh had discontinued the policy of granting Selection Grade vide Finance Department Memorandum dated 06-11-2001, rendering such grant inadmissible. Moreover, Rule 34(2) of the KFHA Employees (Service) Rules applies only to those perks and privileges that are, for the time being, applicable to civil servants. It was also stated that no consent was accorded by the SGA&CD, and no record exists showing approval by the Chief Secretary or the Chief Minister Sindh, as required under Schedule-II of the KFHA Employees (Service) Rules.

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5. When Administrative Department i.e. the Livestock & Fisheries Department, Government of Sindh was contacted, the Section Officer (Fisheries), vide letter dated 19-12-2025, stated that the then Managing Director, KFHA, had recommended grant of Selection Grade to Syed Intikhab Hussain on 24-04-2019, in view of his long and satisfactory service, as the post of Harbour Master (BS-18) was an isolated post with no further avenue of promotion.

6. The matter was required to be placed before the KFHA Board; however, since the Board was not in existence at the relevant time, the case was referred back for submission of a legal note to the Chairman regarding exercise of powers in the absence of the Board. KFHA maintained that under Section 2 of the KFHA (Amendment) Ordinance, 1984, the Chairman is empowered to exercise the powers and functions of the Board until its constitution.

7. The Livestock & Fisheries Department also obtained advice from the Regulation Wing, SGA&CD, which clarified that KFHA employees are governed by their own Act and Rules, and that the Department may decide the matter accordingly. Section 29 of the Ordinance further provides that KFHA employees are deemed to be public servants under Section 21 of the Pakistan Penal Code.

8. Accordingly, the Livestock & Fisheries Department concluded that the complainant was lawfully granted Selection Grade BS-19 by the Chairman, KFHA, on the basis of the Managing Director's recommendation and the applicable rules.

FINDINGS

9. I have perused the case file and found that:

- a. The grant of Selection Grade BS-19 to the complainant was made in accordance with the applicable KFHA Rules and under the lawful authority of the Chairman, KFHA, based upon the recommendation of the Managing Director.
- b. Accordingly, I find that the complainant is entitled to pensionary benefits calculated on the basis of Selection Grade BS-19, and the deduction made from his pension without proper justification is not sustainable.
- c. The Agency is therefore required to restore the complainant's pension and retirement benefits on the basis of BS-19 Selection Grade, and ensure payment of any arrears arising therefrom.

DECISION

10. In exercise of the powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), I hereby direct the Managing Director, Karachi Fisheries Harbour Authority, to restore the pension of Syed Intikhab Hussain, retired Harbour Master in BPS-19. The compliance report shall be submitted to this office within 30 days of receipt of this decision.

Given under my hand and seal of the office.



Sd /-
Muhammad Sohail Rajput
Sitara-e-Imtiaz, PAS
Ombudsman, Sindh

Karachi, dated 30th January, 2026